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Greece

Compilation of information prepared by the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the outcome of the previous review.[1] It is a compilation of information contained in relevant United Nations documents, presented in a summarized manner owing to word-limit constraints.

II. Scope of international obligations and cooperation with human rights mechanisms

2. The Committee on the Rights of the Child and the Committee on the Elimination of Discrimination against Women recommended that Greece ratify the Optional Protocol to the Convention on the Rights of the Child on a communications procedure.[2]

3. The Committee on the Elimination of Discrimination against Women and the United Nations Educational, Scientific and Cultural Organization (UNESCO) recommended that Greece ratify the Optional Protocol to the International Covenant on Economic, Social and Cultural Rights.[3]

4. The Committee on the Rights of the Child, the Committee on the Elimination of Discrimination against Women and the Committee on the Elimination of Racial Discrimination recommended that Greece consider ratifying the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families.[4]

5. The Committee on the Rights of the Child and the Committee on the Elimination of Discrimination against Women recommended that Greece consider ratifying the Convention on the Reduction of Statelessness and the European Convention on Nationality.[5] The Human Rights Committee recommended that Greece consider acceding to the Convention relating to the Status of Stateless Persons and the Convention on the Reduction of Statelessness.[6] The Committee on the Elimination of Discrimination against Women recommended that Greece ratify the Council of Europe Convention on the Avoidance of Statelessness in relation to State Succession, of 2006.[7]

6. The Special Rapporteur on the situation of human rights defenders visited Greece from 13 to 22 June 2022.[8] The Working Group on the use of mercenaries as a means of violating human rights and impeding the exercise of the right of peoples to self-determination

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visited Greece from 9 to 16 December 2022.[9] The Subcommittee on Prevention of Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment conducted its first visit to Greece from 6 to 17 October 2024.[10]

7. The Working Group on mercenaries recommended that Greece consider ratifying the International Convention against the Recruitment, Use, Financing and Training of Mercenaries, of 1989.[11]

8. The Committee on the Elimination of Discrimination against Women and the Committee on the Elimination of Racial Discrimination recommended that Greece ratify the Domestic Workers Convention, 2011 (No. 189), of the International Labour Organization.[12]

III. National human rights framework

1. Constitutional and legislative framework

9. The Committee on the Rights of the Child urged Greece to align the Penal Code with articles 2 and 3 of the Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography.[13]

10. The Working Group on mercenaries underlined that there was no specific provision criminalizing mercenarism in the Penal Code and there was no regulation in place that would specifically penalize the recruitment of mercenaries to participate in a foreign conflict. The Working Group recommended that Greece consider incorporating the crime of mercenarism in the national legal framework and consider criminalizing the recruitment, training, financing and use of mercenaries, as well as enabling the extradition of suspected mercenaries.[14]

2. Institutional infrastructure and policy measures

11. The Committee on the Elimination of Discrimination against Women recommended that Greece implement the recommendations of the Subcommittee on Accreditation, of the Global Alliance of National Human Rights Institutions, to provide the Greek National Commission for Human Rights with adequate human, technical and financial resources to be able to carry out its mandate effectively and independently.[15]

12. The Committee on the Rights of the Child recommended that Greece allocate adequate financial resources to the Children's Rights Department in the Independent Authority of the Greek Ombudsman to ensure its sustainability.[16]

13. While noting the adoption of the first National Action Plan on the Rights of the Child, in 2021, and the establishment of the National Mechanism for the Monitoring and Evaluation of Action Plans for the Rights of the Child, the Committee on the Rights of the Child recommended that Greece equip the National Action Plan with time-bound and measurable goals and a dedicated budget for its implementation, and provide adequate resources to the National Mechanism.[17]

14. The Committee on the Elimination of Discrimination against Women recommended increasing the human, technical and financial resources needed for the National Council for Gender Equality to discharge its mandate effectively.[18]

15. The Committee on the Rights of the Child recommended that Greece intensify cooperation with non-governmental organizations (NGOs) and meaningfully involve them in the development, implementation and evaluation of policies, programmes and legislation relating to children's rights.[19]

IV. Promotion and protection of human rights

A. Implementation of international human rights obligations, taking into account applicable international humanitarian law

1. Equality and non-discrimination

16. The Committee on the Elimination of Racial Discrimination expressed concern about the low level of implementation of the National Action Plan against Racism and Intolerance, of 2020–2023. It recommended that Greece expedite the adoption of a new national action plan on combating racism, ensure the effective monitoring and evaluation of policies relating to the rights of persons belonging to groups vulnerable to racial discrimination, and strengthen the National Council against Racism and Intolerance.[20]

17. The Committee on the Rights of the Child recommended that Greece intensify its measures to ensure that Roma children, children belonging to the Muslim minority in Thrace, children with disabilities, refugee and asylum-seeking children, children in situations of migration and children of single and/or undocumented migrant parents had effective access to food security, healthcare, education, housing, water, sanitation, social services and a decent standard of living. It also recommended that Greece investigate and prosecute cases of racially, ethnically and religiously motivated crime, punish perpetrators with deterrent sanctions, provide adequate compensation to the victims, and establish and promote avenues for children and their caregivers to seek justice.[21]

18. The Committee on the Elimination of Racial Discrimination recommended that Greece further strengthen law enforcement agencies combating racial discrimination and hate crimes, encourage the reporting of racist hate speech and hate crimes, and ensure the availability and accessibility of safe reporting channels. It also recommended that Greece strengthen effective implementation of its legislative framework, particularly article 82A of the Criminal Code, identify and effectively address all barriers to justice faced by victims, and implement effectively Law No. 4478/2017 by ensuring the availability of support services to victims of racial discrimination and the availability and accessibility of legal assistance and by allocating adequate human, financial and technical resources.[22]

19. The Committee on the Elimination of Racial Discrimination recommended that Greece adopt legislation that explicitly prohibited racial profiling by law enforcement officials; conduct prompt, thorough and impartial investigations into all allegations of racial profiling and racially motivated police violence; and ensure that the alleged perpetrators were prosecuted and, if convicted, punished with appropriate sanctions and that the victims or their families were provided with adequate forms of reparation.[23]

2. Right to life, liberty and security of person, and freedom from torture

20. The Human Rights Committee expressed grave concern about the use of excessive and deadly force by the police and other law enforcement officials. It recommended that Greece ensure that all allegations of excessive use of force and ill-treatment by law enforcement officials were promptly and thoroughly investigated by an independent authority, that alleged perpetrators were prosecuted and that victims and/or their families received adequate compensation. It also recommended providing the Ombudsman's Office with adequate resources to ensure timely and effective investigations into such allegations.[24]

21. The Committee on Enforced Disappearances expressed concern because, following the amendment to the Criminal Code in 2019, enforced disappearance was no longer criminalized as an autonomous offence, but embedded within the crime of abduction in article 322 of the Criminal Code. The Committee recommended that Greece ensure that enforced disappearance was criminalized as a separate offence, with a definition that fully complied with article 2 of the International Convention for the Protection of All Persons from Enforced Disappearance, and that it be punished with appropriate penalties.[25]

3. Administration of justice, including impunity, and the rule of law

22. The Committee on the Rights of the Child urged Greece to align its child justice system with the Convention on the Rights of the Child and other relevant standards and, in particular, to ensure that the necessary legislation and other measures were adopted in order to implement the non-custodial measures as stipulated in the Penal Code (Law No. 3189/2003) and to ensure that detention conditions, including for temporary detention and "reformatory measures", complied with international standards.[26]

23. The Human Rights Committee indicated that Greece should fully implement the National Anti-Corruption Action Plan for 2022–2025, provide the National Transparency Authority with sufficient human and financial resources, guarantee the protection of whistle-blowers from reprisals, guarantee the prompt and timely investigation of all complaints of corruption and ensure that perpetrators were prosecuted.[27]

4. Fundamental freedoms and the right to participate in public and political life

24. The Special Rapporteur on human rights defenders stressed that recent legislative initiatives had introduced significant changes to the registration requirements for NGOs working on migration and asylum.[28] In addition, the Ministry of Migration and Asylum had the power to deny registration to NGOs on vague, arbitrary and ambiguous grounds. The Special Rapporteur considered that the imposition of a registration requirement on a specific segment of civil society and the burdensome requirements within the registration process itself were in violation of the obligations of Greece under international human rights law and were discriminatory. She recommended that Greece make the registration of organizations and associations less onerous, and expeditious, and that it review the current legislation (Law No. 4684/2020) on the Register of Greek and Foreign Non-Governmental Organizations to bring it into conformity with international standards.[29]

25. The Special Rapporteur on human rights defenders indicated that, since 2019, human rights defenders and NGOs working in the field of migration had reported an increasingly hostile environment for their work.[30] She recommended that Greece adopt a zero-tolerance policy in cases of intimidation and stigmatization of human rights defenders, journalists and lawyers, investigate promptly, independently, impartially and effectively any act of reprisal intimidation or stigmatization against them, bring the perpetrators to justice and ensure effective remedies for victims.[31]

26. The Committee on Enforced Disappearances was gravely concerned about the criminalization of search and rescue activities at sea under national legislation and about cases of prosecution of, and threats made against, human rights defenders and civil society actors involved in such operations and in monitoring, documenting and assisting victims of enforced disappearance and pushbacks.[32] The Special Rapporteur on human rights defenders recommended ensuring that undue or disproportionate criminal proceedings were not brought about through fabricated accusations and that selective justice was not used against human rights defenders, lawyers and journalists.[33] The Committee on Enforced Disappearances recommended that Greece not criminalize human rights defenders and civil society actors for their involvement in search and rescue operations concerning migrants, in monitoring and documenting cases of disappearance or in providing assistance to victims.[34]

27. The Special Rapporteur on human rights defenders recommended that Greece revise Law No. 4825/2021 to remove the current obstacles placed by it on the work of human rights defenders at sea and to address the vague definitions, overly restrictive provisions and related penalties included in article 40 of the law.[35] The Human Rights Committee expressed similar concerns.[36]

28. The Special Rapporteur on human rights defenders reported that Law No. 4703/2020 on public, outdoor gatherings had introduced certain restrictions on the exercise of the right of peaceful assembly.[37] The Human Rights Committee recommended that Greece establish strict safeguards and effective oversight for identifying individuals and locations subjected to surveillance and amend Law No. 4703/2020 to ensure that all individuals fully enjoyed their right to freedom of assembly.[38]

5. Right to privacy

29. The Working Group on mercenaries noted the use of high-tech security systems in communal spaces in the Closed Controlled Access Centres, infringing on the fundamental rights of those held in the centres. It recommended that Greece conduct regular and comprehensive reviews of the advanced technologies used in the migration context and consider taking additional measures that did not necessarily involve the use of new technologies to ensure the safety of migrants and guards.[39]

6. Prohibition of all forms of slavery, including trafficking in persons

30. The Human Rights Committee and the Committee on the Elimination of Discrimination against Women welcomed the measures adopted by Greece to combat trafficking in persons.[40] The Committee on the Elimination of Discrimination against Women noted with concern that article 323A of the Penal Code was not fully aligned with the Protocol to Prevent, Supress and Punish Trafficking in Persons, Especially Women and Children, and recommended that Greece amend article 323A of the Penal Code to fully align it with that Protocol.[41] The Human Rights Committee recommended that Greece implement effectively the National Action Plan 2019–2023 for the Prevention and Combating of Trafficking in Human Beings and the Protection and Rehabilitation of Victims; increase the number of shelters for victims of trafficking in persons throughout Greece and ensure the provision of adequate and accessible legal, medical and psychosocial assistance in those shelters; and investigate all cases of trafficking in persons promptly and thoroughly, prosecute suspected perpetrators and, if convicted, impose adequate sanctions on them. The Human Rights Committee also recommended ensuring that victims had access to full reparation, and ensuring that sufficient financial, technical and human resources were allocated to all institutions responsible for preventing, combating and punishing trafficking in persons.[42]

31. The Committee on the Rights of the Child expressed concern that many of the victims of trafficking were children who were being subjected to sexual or labour exploitation and/or were engaged in forced begging. It recommended that Greece strengthen the application of victim identification procedures, effectively investigate and prosecute cases of trafficking of children, ensure appropriate convictions for perpetrators, implement victim- and witness-protection provisions and ensure that prosecutions were victim-centred, and decrease the length of court proceedings for trafficking cases.[43]

32. The Special Rapporteur on trafficking in persons, especially women and children, expressed concern regarding failures in the identification and protection of victims of trafficking at the Closed Controlled Access Centre on Samos. She also raised concerns regarding deficiencies in the identification and referral of potential victims of trafficking.[44]

7. Right to work and to just and favourable conditions of work

33. The Committee on the Elimination of Discrimination against Women noted with concern the persistent 10% gender wage gap, the concentration of women in lower-paid jobs and in the informal economy, the high rates of unemployment among rural women, women with disabilities and women belonging to ethnic minorities, and the underreporting of sexual harassment in the workplace owing to limited access to information on established reporting mechanisms. It recommended that Greece enforce effectively the principle of equal pay for work of equal value; enhance women's access to formal employment and extend social protection schemes to women employed in the informal economy; recognize, reduce and redistribute the burden of unpaid care work on women by providing affordable childcare facilities and care services for older persons; and improve access to employment and training opportunities for disadvantaged groups of women.[45]

8. Right to an adequate standard of living

34. The Committee on the Rights of the Child expressed concern about children living in poverty. It recommended lifting barriers for parents to access financial support, establishing a community-based system of universal social services that strengthened and enabled families to care appropriately for their children, increasing the uptake of childcare by

improving the access and incentives for parents, and adopting legal provisions to establish a system of social housing with fair and transparent allocation criteria.[46]

35. The Committee on the Elimination of Discrimination against Women expressed a similar concern regarding disadvantaged groups of women, such as women with disabilities and women belonging to ethnic minorities. It recommended that Greece strengthen efforts to reduce poverty among women, promote their access to low-interest loans and their participation in entrepreneurial initiatives and provide them with opportunities to acquire the skills necessary to fully participate in economic life.[47]

9. Right to health

36. While welcoming Law No. 4368/2016, the Committee on the Rights of the Child recommended that Greece ensure effective access to healthcare to Roma children, children in a situation of migration and children in street situations, strengthen access to dental and ophthalmological services and to vaccination, ensure an adequate number of skilled healthcare personnel in all regions and in emergency situations, consider introducing intercultural mediators in healthcare, address malnutrition among children and promote healthy lifestyles and physical activity.[48]

37. The Committee on the Elimination of Discrimination against Women noted with concern the high rate of caesarean sections performed, the high rate of early pregnancy, and the limited access for women and girls to sexual and reproductive health services and information. It recommended that Greece provide effective access for women to obstetric services, and ensure that caesarean sections were performed exceptionally and only when medically required; adopt and implement a national strategy for reproductive health, sexuality and family planning, and introduce mandatory age-appropriate education on sexual and reproductive health and rights in school curricula; and ensure that women had access to adequate sexual and reproductive health services and information to prevent early pregnancy and sexually transmitted infections.[49]

10. Right to education

38. The Committee on the Rights of the Child noted the measures taken to improve access to education for children in vulnerable situations. It recommended that Greece strengthen the inclusiveness of its education system and ensure that children with disabilities, Roma children, asylum-seeking and refugee children and unaccompanied migrant children were promptly integrated into, and were retained in and finished, mainstream preschool, primary and secondary education. It also recommended strengthening the quality of learning, and cross-cutting skills, in schools; ensuring school transportation and ensuring that schools were fully and safely accessible and equipped with adequate infrastructure and educational technologies; allocating adequate resources to expand the coverage, capacity and monitoring of preschool education and to ensure access thereto for children with disabilities, Roma children, asylum-seeking and refugee children and unaccompanied children; and ensuring an adequate number of bilingual preschools serving the Muslim minority in Thrace.[50]

39. UNESCO encouraged Greece to enshrine the right to education in a comprehensive manner in the Constitution and in legislation.[51]

11. Development, the environment, and business and human rights

40. Regarding tourism and air pollution, the Committee on the Rights of the Child recommended that Greece establish, implement and monitor regulations to ensure that the business sector complied with international standards in the areas of human and children's rights, health, labour and the environment.[52]

B. Rights of specific persons or groups

1. Women

41. The Committee on the Elimination of Discrimination against Women expressed concern about the limited effectiveness of the laws and policies to protect women's rights

and promote gender equality. It recommended that Greece ensure the effective application of legislation prohibiting sex-based discrimination, and apply the principle of intersectionality in order to ensure access to public services for women facing intersecting forms of discrimination.[53]

42. On violence against women, the Committee on the Elimination of Discrimination against Women recommended that Greece amend the Penal Code to specifically criminalize femicide; encourage reporting of domestic violence against women and girls; ensure that gender-based violence was effectively investigated and prosecuted, that perpetrators were adequately punished and that protection orders were effectively enforced and monitored; and adequately fund victim support services by strengthening the 20 State-run shelters, subsidizing shelters run by NGOs, and expanding the network of specialized, inclusive and accessible shelters for women and girl victims of gender-based violence.[54] The Human Rights Committee expressed a similar concern.[55]

43. The Committee on the Elimination of Discrimination against Women expressed concern about the significant number of women and girls in Greece who had undergone or were at risk of female genital mutilation. It recommended that Greece provide information to survivors of female genital mutilation on the support services available to them and ensure that perpetrators were prosecuted and adequately punished.[56] The Committee on the Rights of the Child expressed a similar concern.[57]

2. Children

44. The Committee on the Elimination of Discrimination against Women expressed concern about the prevalence of child marriage in Greece, especially among the Roma community. It recommended that Greece review the Civil Code in order to remove all exceptions to the legal minimum age of marriage of 18 years for both women and men; combat child and forced marriage; encourage the reporting of cases and punish complicit family members, religious and community leaders or law enforcement officers; and provide support services to girl victims of child and forced marriage.[58] The Committee on the Rights of the Child and UNESCO made similar recommendations.[59]

45. The Committee on the Rights of the Child urged Greece to further develop the national database of all cases of violence against children and undertake a comprehensive assessment of the extent, causes and nature of such violence, in order to formulate a comprehensive strategy for preventing and combating it. It also urged Greece to ensure that the prohibition of corporal punishment, bullying and domestic violence covered all settings and was enforced effectively, to establish mechanisms, procedures and guidelines to ensure and promote mandatory reporting and multi-agency intervention in all cases of violence against children, and to ensure that children had access to confidential, child-friendly complaint mechanisms for the reporting of all forms of violence and abuse. The Committee urged Greece to ensure that reparations were provided to child victims and that perpetrators were prosecuted and duly sanctioned and were deterred from having contact with children, and to provide specialized services and access to information about compensation for children who were victims of violence.[60] UNESCO urged Greece to legally proscribe corporal punishment at all levels of education.[61]

46. The Committee on the Rights of the Child expressed concern about the overinstitutionalization of children deprived of parental care, the lack of sufficient family-based care options, the insufficient contact of children in care with their parents and the insufficient support for children leaving care. The Committee recommended that Greece implement the National Deinstitutionalization Strategy, together with a specific and time-bound action plan with a budget and staff allocations to prevent and phase out institutionalization; develop emergency care solutions to end the practice of hospitalization of children in need of temporary care; ensure that the provision of care met the needs of children belonging to ethnic or religious minorities, children with behavioural, psychological and/or psychosocial issues, children with disabilities, children in conflict with the law and unaccompanied migrant children; and ensure adequate support for children leaving care and further develop community-based services and supported independent living.[62]

3. Persons with disabilities

47. Due to alleged violence and inhumane conditions in institutions, the Committee on the Rights of the Child recommended that Greece strengthen the implementation of the National Deinstitutionalization Strategy and Action Plan and urgently close down the Children's Care Centre in Lechania, address the root causes of the institutionalization of children with disabilities, ensure the availability of and access to day care, home nursing and relief services, allocate budgets and employ personnel trained to work with children with disabilities, develop community and outpatient healthcare services, provide opportunities and facilities for leisure and play, and urgently investigate and prosecute the cases of violence in childcare institutions.[63]

48. The Committee on the Elimination of Discrimination against Women noted with concern that women with disabilities faced intersecting forms of discrimination in Greece. It recommended ensuring that women and girls with disabilities were able to access justice, inclusive education, employment and health services, including sexual and reproductive health services.[64] The Committee on the Rights of the Child recommended that Greece operationalize and mainstream inclusive education for children with disabilities.[65]

4. Indigenous Peoples and minorities

49. The Human Rights Committee expressed concern about the persistent marginalization of and discrimination against Roma and the ill-treatment they received from law enforcement officers. The Committee indicated that Greece should redouble its efforts to prevent and eradicate all forms of discrimination against and marginalization of Roma; and conduct thorough, independent and impartial investigations into all allegations of discrimination and ill-treatment, prosecute perpetrators and provide victims with a full remedy. It also recommended that Greece ensure that the National Roma Integration Strategy and the Action Plan for the Social Integration of Roma 2021–2030 were fully implemented.[66] The Committee on the Elimination of Racial Discrimination made similar remarks.[67]

5. Lesbian, gay, bisexual, transgender and intersex persons

50. The Special Rapporteur on human rights defenders reported that defenders of lesbian, gay, bisexual, transgender and intersex communities had faced anonymous threats, online attacks and physical attacks for their work. She recommended that Greece increase the measures to effectively protect the rights of lesbian, gay, bisexual, transgender and intersex persons and defenders, particularly by ensuring the effective investigation of bias-motivated crimes and hate speech and access to a fair trial and remedies and by taking steps to prevent discrimination on the grounds of sexual orientation and gender identity.[68]

51. The Human Rights Committee expressed concern that intersex persons continued to face discrimination from the medical community and derogatory speech online. It considered that Greece should ensure that violence motivated by the victim's sexual orientation or gender identity was thoroughly investigated, that those responsible were brought to justice and that victims had effective access to legal aid and judicial remedies. Greece should also establish accessible mechanisms for victims to file complaints of discrimination based on sexual orientation and gender identity and adopt measures to avoid revictimization; and adhere to the eleventh revision of the International Statistical Classification of Diseases and Related Health Problems, of the World Health Organization.[69]

6. Migrants, refugees and asylum-seekers

52. The Committee on Enforced Disappearances expressed concern about the high number of migrants who had disappeared in Greek waters and the significant obstacles that their family members faced to search for and locate their loved ones. The Committee recommended that Greece redouble its efforts to prevent and investigate the disappearance of migrants and ensure that those responsible were prosecuted; increase its efforts to search for and locate disappeared migrants and, in the case of death, identify and return their remains; establish a central DNA database to facilitate search and identification; promote the establishment of agreements, mechanisms and practices with all relevant countries to multiply the options for DNA data cross-matching for unidentified human remains; and

ensure that relatives of disappeared migrants and their representatives had the opportunity to obtain information and take part in investigations and the search for their loved ones.[70] The Working Group on mercenaries expressed similar concerns.[71]

53. The Human Rights Committee remained gravely concerned about pushbacks of asylum-seekers, refugees and migrants at the country's sea and land borders, in violation of the principle of non-refoulement. It recommended that Greece cease the alleged practice of arbitrary and collective expulsion of aliens, establish effective safeguards to prevent coercion in cases of voluntary return and conduct objective and individualized assessments of the level of protection available in third countries deemed to be safe. It also recommended that Greece ensure that all allegations of pushbacks of migrants were promptly and thoroughly investigated and perpetrators were prosecuted and that sufficient reparations were provided to the victims. Greece should also affirm the independence and impartiality of the monitoring mechanisms involved in investigating violations of the human rights of migrants and asylum-seekers at borders. Furthermore, Greece should provide effective alternatives to the detention of migrants and reduce the length and practice of such detentions, and prioritize the protection of life, particularly during rescue missions at sea.[72] The Committee on the Elimination of Discrimination against Women, the Committee on Enforced Disappearances, the Committee on the Elimination of Racial Discrimination, the Committee on the Rights of the Child and the Special Rapporteur on human rights defenders made similar remarks.[73]

54. The Committee on Enforced Disappearances recommended that Greece ensure that all asylum-seekers had unhindered access to effective refugee status determination procedures; ensure that a thorough individual assessment of the risk faced by any person of becoming a victim of enforced disappearance was conducted before it proceeded with an expulsion, return, surrender or extradition; and ensure that any decision taken in the context of such procedures could be appealed to an impartial authority within a reasonable time frame and that such an appeal had suspensive effect.[74]

55. The Working Group on mercenaries highlighted the importance of strengthening oversight over private military and security companies and security personnel operating in Closed Controlled Access Centres. It recommended that Greece strengthen accountability, oversight and remedy mechanisms to prevent abuses within Closed Controlled Access Centres and protect victims of human rights violations. The Working Group also recommended that Greece consider establishing external and independent monitoring and inspection mechanisms of Closed Controlled Access Centres and ensure that all complaints were thoroughly investigated and that companies and their personnel were held accountable for human rights violations and abuses committed against migrants.[75]

56. The Special Rapporteur on human rights defenders indicated that, despite legislation granting lawyers access to reception and identification centres, Greek lawyers could only enter migrant camps in their personal capacity. The Reception and Identification Service denied access to lawyers working in organizations not included in the register of NGOs. She recommended that Greece ensure that complaints concerning officials obstructing the work of lawyers were promptly and thoroughly investigated and were followed by disciplinary proceedings where violations of the applicable legal regime were identified.[76]

57. The Human Rights Committee recommended that Greece improve conditions of detention in detention and reception centres to ensure full compliance with the International Covenant on Civil and Political Rights, the United Nations Standard Minimum Rules for the Treatment of Prisoners (the Nelson Mandela Rules), the United Nations Rules for the Treatment of Women Prisoners and Non-custodial Measures for Women Offenders (the Bangkok Rules) and the United Nations Standard Minimum Rules for Non-custodial Measures (the Tokyo Rules). Greece should also ensure that persons held in all places of deprivation of liberty had adequate access to food, clean water, sanitation, feminine hygiene products and healthcare. The Committee also recommended enhancing measures designed to prevent overcrowding in detention and reception centres, particularly through the wider application of non-custodial measures.[77]

7. Stateless persons

58. The Human Rights Committee expressed concern about barriers to access to Greek nationality on the basis of birth in Greece and the lack of laws and procedures in place to determine statelessness in Greece. It recommended that Greece ensure that all children born in its territory were registered and received an official birth certificate.[78]

59. The Committee on the Elimination of Racial Discrimination expressed concern about the delay in developing and implementing a dedicated determination procedure in relation to statelessness and about reports that stateless persons faced obstacles in gaining access to education and health services. It recommended that Greece establish a dedicated and effective procedure for determining statelessness and ensure that stateless persons could enjoy their economic and social rights without discrimination.[79]

60. The Committee on the Rights of the Child recommended that Greece further facilitate access to birth registration procedures and identity documentation, and to correction of birth certificates for Roma children and children of migrant parents, free of charge; repeal the requirement of a certified marriage certificate for registering both parents on the birth certificate of their child; and establish legal safeguards to prevent statelessness of children born to foreign parents and of children born to same-sex couples and facilitate their access to Greek citizenship.[80]

Notes

1 A/HRC/49/5, A/HRC/49/5/Add.1 and A/HRC/49/2.
2 CRC/C/GRC/CO/4-6, para. 46; and CEDAW/C/GRC/CO/8-9, para. 53. See also A/HRC/54/29/Add.1, para. 21; and A/HRC/52/29/Add.1, para. 8.
3 CEDAW/C/GRC/CO/8-9, para. 53; and UNESCO submission for the universal periodic review of Greece, para. 46.
4 CRC/C/GRC/CO/4-6, para. 47; CEDAW/C/GRC/CO/8-9, para. 53; and CERD/C/GRC/CO/23-24, para. 30. See also A/HRC/54/29/Add.1, para. 21; and A/HRC/52/29/Add.1, para. 8.
5 CRC/C/GRC/CO/4-6, para. 21; and CEDAW/C/GRC/CO/8-9, para. 30. See also CERD/C/GRC/CO/23-24, para. 30.
6 CCPR/C/GRC/CO/3, para. 23. See also CEDAW/C/GRC/CO/8-9, para. 30.
7 CEDAW/C/GRC/CO/8-9, para. 30.
8 A/HRC/52/29/Add.1, para. 1.
9 A/HRC/54/29/Add.1, para. 1.
10 See https://tbinternet.ohchr.org/_layouts/15/TreatyBodyExternal/CountryVisits.aspx?Lang=en.
11 A/HRC/54/29/Add.1, para. 63.
12 CEDAW/C/GRC/CO/8-9, para. 34; and CERD/C/GRC/CO/23-24, para. 30.
13 CRC/C/GRC/CO/4-6, para. 44.
14 A/HRC/54/29/Add.1, paras. 23 and 63.
15 CEDAW/C/GRC/CO/8-9, paras. 17 and 18.
16 CRC/C/GRC/CO/4-6, para. 12.
17 Ibid., paras. 8 and 9.
18 CEDAW/C/GRC/CO/8-9, paras. 15 and 16.
19 CRC/C/GRC/CO/4-6, para. 14. See also CERD/C/GRC/CO/23-24, paras. 12 and 13.
20 CERD/C/GRC/CO/23-24, paras. 12 and 13. See also CRC/C/GRC/CO/4-6, paras. 17 and 18.
21 CRC/C/GRC/CO/4-6, paras. 17 and 18. See also CCPR/C/GRC/CO/3, paras. 38 and 39.
22 CERD/C/GRC/CO/23-24, paras. 10, 11, 14, 15 and 17.
23 Ibid., paras. 18 and 19.
24 CCPR/C/GRC/CO/3, paras. 16 and 17. See also CERD/C/GRC/CO/23-24, paras. 18 and 19.
25 CED/C/GRC/CO/1, paras. 12, 13, 15 and 17.
26 CRC/C/GRC/CO/4-6, para. 43.
27 CCPR/C/GRC/CO/3, paras. 8 and 9.
28 A/HRC/52/29/Add.1, paras. 38 and 39. See also https://www.ohchr.org/en/press-releases/2023/01/trial-human-rights-defenders-greece-helping-migrants.
29 A/HRC/52/29/Add.1, paras. 52, 68 and 115.
30 Ibid., paras. 19–23, 28, 65–71, 76, 86, 100 and 114. See also CAT/C/GRC/QPR/8, para. 25.
31 A/HRC/52/29/Add.1, para. 115. See also UNESCO submission, para. 43.

[32] CED/C/GRC/CO/1, paras. 24 and 25. See also https://www.ohchr.org/en/statements-and-speeches/2023/06/greece-shipwreck-un-committee-dismayed-rising-death-toll-calls.
[33] A/HRC/52/29/Add.1, para. 115. See also CAT/C/GRC/QPR/8, para. 25; and CERD/C/GRC/CO/23-24, paras. 20 and 21.
[34] CED/C/GRC/CO/1, paras. 24 and 25. See also CCPR/C/GRC/CO/3, paras. 30 and 31; A/HRC/52/29/Add.1, para. 115; and https://www.ohchr.org/en/statements-and-speeches/2023/06/greece-shipwreck-un-committee-dismayed-rising-death-toll-calls.
[35] A/HRC/52/29/Add.1, para. 115.
[36] CCPR/C/GRC/CO/3, paras. 36 and 37.
[37] A/HRC/52/29/Add.1, paras. 53–55.
[38] CCPR/C/GRC/CO/3, paras. 34 and 35.
[39] A/HRC/54/29/Add.1, paras. 60 and 63.
[40] CCPR/C/GRC/CO/3, paras. 18 and 19; and CEDAW/C/GRC/CO/8-9, paras. 25 and 26.
[41] CEDAW/C/GRC/CO/8-9, paras. 25 and 26.
[42] CCPR/C/GRC/CO/3, paras. 18 and 19. See also CAT/C/GRC/QPR/8, para. 6; and https://www.ohchr.org/en/press-releases/2024/12/greece-un-expert-alarmed-failures-identification-and-protection-victims.
[43] CRC/C/GRC/CO/4-6, para. 42. See also CAT/C/GRC/QPR/8, para. 6.
[44] See https://www.ohchr.org/en/press-releases/2024/12/greece-un-expert-alarmed-failures-identification-and-protection-victims.
[45] CEDAW/C/GRC/CO/8-9, paras. 33 and 34.
[46] CRC/C/GRC/CO/4-6, para. 37.
[47] CEDAW/C/GRC/CO/8-9, paras. 37 and 38.
[48] CRC/C/GRC/CO/4-6, para. 35.
[49] CEDAW/C/GRC/CO/8-9, paras. 35 and 36.
[50] CRC/C/GRC/CO/4-6, para. 38. See also UNESCO submission, paras. 2 and 3.
[51] UNESCO submission, para. 36.
[52] CRC/C/GRC/CO/4-6, para. 15.
[53] CEDAW/C/GRC/CO/8-9, paras. 11 and 12.
[54] Ibid., paras. 23 and 24.
[55] CCPR/C/GRC/CO/3, paras. 14 and 15. See also CAT/C/GRC/QPR/8, para. 5.
[56] CEDAW/C/GRC/CO/8-9, paras. 21 and 22.
[57] CRC/C/GRC/CO/4-6, para. 28.
[58] CEDAW/C/GRC/CO/8-9, paras. 47 and 48.
[59] CRC/C/GRC/CO/4-6, paras. 16 and 28; and UNESCO submission, para. 36.
[60] CRC/C/GRC/CO/4-6, paras. 26 and 27.
[61] UNESCO submission, para. 36.
[62] CRC/C/GRC/CO/4-6, paras. 30 and 31. See also CCPR/C/GRC/CO/3, paras. 26 and 27; CAT/C/GRC/QPR/8, para. 18; and A/HRC/WGAD/2025/64, para. 75.
[63] CRC/C/GRC/CO/4-6, paras. 33 and 34. See also CAT/C/GRC/QPR/8, para. 19.
[64] CEDAW/C/GRC/CO/8-9, paras. 41 and 42.
[65] CRC/C/GRC/CO/4-6, para. 38.
[66] CCPR/C/GRC/CO/3, paras. 10 and 11.
[67] CERD/C/GRC/CO/23-24, paras. 22 and 23.
[68] A/HRC/52/29/Add.1, paras. 102–104 and 115.
[69] CCPR/C/GRC/CO/3, paras. 12 and 13.
[70] CED/C/GRC/CO/1, paras. 26 and 27.
[71] A/HRC/54/29/Add.1, para. 63. See also https://www.ohchr.org/en/press-releases/2024/01/un-experts-hail-landmark-ruling-european-court-human-rights-shooting-greek and https://www.ohchr.org/en/press-briefing-notes/2023/06/loss-life-mediterranean-horrific-tragedy-turk.
[72] CCPR/C/GRC/CO/3, paras. 20 and 21. See also CAT/C/GRC/QPR/8, para. 7.
[73] CEDAW/C/GRC/CO/8-9, paras. 43 and 44; CED/C/GRC/CO/1, paras. 28 and 29; CERD/C/GRC/CO/23-24, paras. 26 and 27; CRC/C/GRC/CO/4-6, paras. 39 and 40; and A/HRC/52/29/Add.1, para. 115. See also CAT/C/GRC/QPR/8, para. 9; and https://www.ohchr.org/en/press-releases/2023/08/greece-un-experts-call-safe-impartial-border-policies-and-practices.
[74] CED/C/GRC/CO/1, paras. 28 and 29. See also CAT/C/GRC/QPR/8, para. 9; and https://www.ohchr.org/en/press-releases/2023/08/greece-un-experts-call-safe-impartial-border-policies-and-practices.
[75] A/HRC/54/29/Add.1, paras. 47–49 and 63. See also A/HRC/52/29/Add.1, para. 115.
[76] A/HRC/52/29/Add.1, paras. 92, 95 and 115.

[77] CCPR/C/GRC/CO/3, paras. 24 and 25. See also CERD/C/GRC/CO/23-24, paras. 26 and 27; CAT/C/GRC/QPR/8, para. 14; and CED/C/GRC/CO/1, paras. 20 and 21.
[78] CCPR/C/GRC/CO/3, paras. 22 and 23.
[79] CERD/C/GRC/CO/23-24, paras. 28 and 29. See also CCPR/C/GRC/CO/3, paras. 22 and 23; and UNESCO submission, para. 36.
[80] CRC/C/GRC/CO/4-6, para. 21.